

I-2025-012817

12/08/2025 9:51am

Book 3047 Pg 908

Pg 0908-0940

Fee: \$82.00 Doc: \$0.00

Rebekah Couch - McClain County Clerk

State of OK



✓ By JJ, Deputy
Return to:
McAfee + Taft

72-

THIS INSTRUMENT DRAFTED BY:

McAfee & Taft, P.C.

Attention: Russell B. Taylor, Esq.

*211 North Robinson Avenue

Two Leadership Square, 8th Floor

Oklahoma City, OK 73102

AFTER RECORDING RETURN TO:

Sovereign Bank

Attention: Randy Stafford

3030 N.W. Expressway, Suite 130

Oklahoma City, OK 73112

**MORTGAGE, SECURITY AGREEMENT, FINANCING STATEMENT, AND
ASSIGNMENT OF PRODUCTION**

THIS INSTRUMENT CONTAINS FUTURE ADVANCE PROVISIONS. THIS INSTRUMENT COVERS THE INTEREST OF MORTGAGOR IN MINERALS OR THE LIKE (INCLUDING OIL AND GAS) BEFORE EXTRACTION AND THE SECURITY INTEREST CREATED BY THIS INSTRUMENT ATTACHES TO SUCH MINERALS AS EXTRACTED AND TO THE ACCOUNTS RESULTING FROM THE SALE THEREOF AT THE WELLHEAD OR WELLHEADS OF THE WELL OR WELLS LOCATED ON THE REAL PROPERTY HEREIN DESCRIBED. THIS INSTRUMENT COVERS THE INTEREST OF MORTGAGOR IN AS-EXTRACTED COLLATERAL. THIS FINANCING STATEMENT IS TO BE FILED FOR RECORD, AMONG OTHER PLACES, IN THE REAL ESTATE RECORDS. PRODUCTS OF THE COLLATERAL ARE ALSO COVERED.

**A POWER OF SALE HAS BEEN GRANTED IN THIS INSTRUMENT. A
POWER OF SALE MAY ALLOW THE MORTGAGEE TO TAKE THE
COLLATERAL AND SELL IT WITHOUT GOING TO COURT IN A
FORECLOSURE ACTION UPON DEFAULT BY MORTGAGOR UNDER
THIS INSTRUMENT**

MONTAGE MINERALS LLC

(Debtor and Mortgagor)

TO AND FOR THE BENEFIT OF,

SOVEREIGN BANK

(collectively as Mortgagee, Secured Party and Grantee)

December 1, 2025

ATTENTION RECORDING OFFICER: This instrument is a mortgage of both real and personal property and is, among other things, a Security Agreement and Financing Statement

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under the Uniform Commercial Code in effect in the State of Oklahoma. This instrument creates a lien on rights in or relating to lands of the Mortgagor which are described in Exhibit A hereto or in documents described in such Exhibit "A". For purposes of filing this Mortgage as a financing statement, Montage Minerals LLC is a limited liability company organized under the laws of the State of Oklahoma, and the mailing address of the Mortgagor is 2201 S. Utica Place, Suite 100, Tulsa, OK 74114. The mailing address of the Mortgagee is 3030 Northwest Expressway, Suite 130, Oklahoma City, Oklahoma 73112.

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McClain County

**MORTGAGE, SECURITY AGREEMENT, FINANCING STATEMENT AND
ASSIGNMENT OF PRODUCTION**

THIS MORTGAGE, SECURITY AGREEMENT, FINANCING STATEMENT AND ASSIGNMENT OF PRODUCTION (this "Mortgage") dated effective as of the 1st day of December, 2025 (the "Effective Date"), is executed and delivered by **MONTAGE MINERALS LLC**, a Delaware limited liability company (the "Mortgagor"), to and in favor of **SOVEREIGN BANK**, an Oklahoma banking corporation (the "Mortgagee"). The addresses of the Mortgagor and the Mortgagee appear in Section 7.12 of this Mortgage.

RECITALS

WHEREAS, this Mortgage is executed in connection with, and pursuant to the terms of, that certain Loan Agreement of even date herewith, as amended, among Montage Minerals LLC, a Delaware limited liability company (in such capacity, the "Borrower"), and Mortgagee (in such capacity, the "Lender") (the "Loan Agreement").

WHEREAS, it is a requirement under the Loan Agreement that Mortgagor execute and deliver this Mortgage.

NOW, THEREFORE, in consideration of the foregoing and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Mortgagor and Mortgagee hereby agree as follows:

Article I. Definitions

Section 1.01 "Collateral" means the Realty Collateral and Personalty Collateral described on Exhibit "A", attached hereto.

Section 1.02 "Contracts" means all contracts, agreements, operating agreements, gas balancing agreements, water disposal agreements, area of mutual interest agreements, farm-out or farm-in agreements, sharing agreements, mineral purchase agreements, contracts for the purchase, exchange, transportation, processing or sale of Hydrocarbons, rights-of-way, easements, surface leases, equipment leases, permits, franchises, licenses, pooling or unitization agreements, and unit or pooling designations and orders now or hereafter affecting, and solely with respect to, the Wells, any of the Oil and Gas Properties or Hydrocarbons now or hereafter covered hereby, or which are useful or appropriate in drilling for, producing, treating, handling, storing, disposing, transporting or marketing oil, gas or other minerals produced from any of the Oil and Gas Properties, and all such contracts and agreements as they may be amended, restated, modified, substituted or supplemented from time-to-time.

Section 1.03 "Event of Default" shall have the meaning set forth in Article V hereof.

Section 1.04. "Hydrocarbons" means oil, gas, coal seam gas, casinghead gas, drip gasoline, natural gasoline, condensate, distillate, and all other liquid and gaseous hydrocarbons produced or to be produced in conjunction therewith from a well bore solely with respect to wells located on the Leases as defined below or on any other lease with which any Oil and Gas Properties or Leases have been unitized (the "Wells") and all products, by-products, and other substances derived therefrom or the processing thereof, and all other minerals and substances produced in conjunction with such substances, including sulfur, geothermal steam, water, carbon dioxide, helium, and any and all minerals, ores, or substances of value and the products and proceeds therefrom, and shall include "as-extracted" collateral as defined in the applicable Uniform Commercial Code.

Section 1.05 "Legal Requirements" means all federal, state, county, municipal and other governmental statutes, laws, rules, orders, regulations, ordinances, judgments, decrees and injunctions of Governmental Authorities affecting the Property or any part thereof, or the construction, use, alteration or operation thereof, or any part thereof, whether now or hereafter enacted and in force, and all permits, licenses and authorizations and regulations relating thereto, and all covenants, agreements, restrictions and encumbrances contained in any instruments, either of record or known to Mortgagor, at any time in force affecting the Borrower, the Property or any part thereof, including, without limitation, any which may (a) require repairs, modifications or alterations in or to the Borrower, the Property or any part thereof, or (b) in any way limit the use and enjoyment thereof.

Section 1.06 "Maturity Date" means the date upon which the Note becomes due and payable, whether by acceleration or in due course, as set forth in the Note.

Section 1.07 "Note" means that certain Revolving Line of Credit Promissory Note of even date herewith, by Mortgagor in favor of Mortgagee in the face amount of \$6,000,000.00.

Section 1.08 "Obligations" means:

(a) The "Obligations", as that term is defined in the Loan Agreement, including all indebtedness evidenced by the Note, whether fixed or contingent, joint or several, direct or indirect, primary or secondary, and regardless of how created or evidenced;

(b) All sums advanced or costs or expenses incurred by the Mortgagee, which are made or incurred pursuant to, or allowed by, the terms of this Mortgage plus interest thereon from the date of the borrowing or incurrence until reimbursement of the Mortgagee;

(c) All future advances or other value, of whatever class or for whatever purpose, at any time hereafter made or given by the Mortgagee to the Mortgagor under or pursuant to any Loan Document, whether or not the advances or value are given pursuant to a commitment, whether or not the advances or value are presently contemplated by the parties

hereto, and whether or not the Mortgagor is indebted to Lender at the time of such events; and

(d) All renewals, extensions, modifications, amendments, rearrangements and substitutions of all or any part of the above whether or not the Mortgagor executes any agreement or instrument.

Section 1.09 "Oil and Gas Property" or "Oil and Gas Properties" means, whether now owned or hereafter acquired by operation of law or otherwise (a) the oil and gas and/or oil, gas and mineral leases and leasehold interests (collectively, "Leases"), fee mineral interests, mineral servitudes, term mineral interests, participation interests, back-in or carried working interests, rights of first refusal, options, subleases, farmouts, royalties, overriding royalties, net profits interests, production payments and similar interests or estates described on Exhibit A attached hereto and made a part hereof for all purposes, including (b) all production units, and drilling and spacing units, any oil, gas and/or mineral unitization, pooling and/or communitization agreements (and the Properties covered thereby) which may affect all or any portion of such interests including those units which may be described or referred to on Exhibit A and any units created by agreement or designation or under orders, regulations, rules or other acts of any Federal, state or other governmental body or agency having jurisdiction, (c) the surface leases described in Exhibit A, (d) any other interest in, to or relating to (i) all or any part of the land described in Exhibit A, the land relating to, or described in, the leases set forth in Exhibit A or in the documents described in Exhibit A, or (ii) any of the estates, property rights or other interests referred to above, (e) any instrument executed in amendment, correction, modification, confirmation, renewal or extension of any of the estates, property rights, or other interests referred to above, (f) any and all rights, titles and interests of the Mortgagor (which are similar in nature to any of the rights, titles and interests described in (a) through (f) above) which are located on or under or which concern any Properties, and (g) all tenements, hereditaments and appurtenances now existing or hereafter obtained in connection with any of the aforesaid, including any rights arising under unitization agreements, orders or other arrangements, communitization agreements, orders or other arrangements or pooling orders, agreements or other arrangements provided that, notwithstanding any provision in this Mortgage or in any other Loan Document to the contrary, any such now owned or hereafter acquired foregoing rights, titles, interests and estates described above shall only constitute Leases and shall only constitute Oil and Gas Property under this Mortgage solely to the extent and IN SO FAR AND ONLY IN SO FAR AS such foregoing rights, titles, interests and estates cover the Wells and are necessary to operate, maintain, access, produce and plug and abandon the Wells.

Section 1.10 "Personalty Collateral" means all of the Mortgagor's interest now owned or hereafter acquired in and to (a) all Hydrocarbons severed and extracted from or attributable to the Oil and Gas Properties solely with respect to the Wells, including oil in tanks and all other "as-extracted" collateral severed and produced from or attributable to the Oil and Gas Properties solely with respect to the Wells, (b) all accounts (including accounts resulting from the sale of

Hydrocarbons at the wellhead solely with respect to the Wells), contract rights and general intangibles, including all accounts, contract rights and general intangibles now or hereafter arising regardless of whether any of the foregoing is in connection with the sale or other disposition of any such Hydrocarbons or otherwise, including all Liens securing the same, (c) all accounts, contract rights and general intangibles now or hereafter arising regardless of whether any of the foregoing is in connection with or resulting from any of the Contracts, including all Liens securing the same, (d) all proceeds and products of the Realty Collateral and any other contracts or agreements, (e) all information concerning the Oil and Gas Properties and all Wells located thereon, including abstracts of title, title opinions, geological and geophysical information and logs, lease files, well files, and other books and records (including computerized records and data), (f) any deposit or time accounts maintained with Lender, including the Mortgagor's Deposit Account, and all funds and investments therein, (g) any options or rights of first refusal to acquire any Realty Collateral, and (h) all proceeds, products, renewals, increases, profits, substitutions, replacements, additions, amendments and accessions of, to or for any of the foregoing.

Section 1.11 "Property" means any property of any kind, whether real, personal, or mixed and whether tangible or intangible.

Section 1.12 "Realty Collateral" means all of the Mortgagor's interest now owned or hereafter acquired in and to the Oil and Gas Properties, including all unsevered and unextracted Hydrocarbons, (even though the Mortgagor's interest therein may be incorrectly described in, or a description of a part or all of such interest may be omitted from, Exhibit "A").

Section 1.13 "Security Termination" means such time at which each of the following events shall have occurred on or prior to such time: (a) termination of the Loan Agreement and (b) the payment in full of all outstanding borrowings and liabilities and all other Obligations (other than contingent indemnification obligations) payable under any other Loan Document.

Section 1.14 Undefined Terms. All other capitalized terms defined in the Loan Agreement which are used in this Mortgage and which are not otherwise defined herein shall have the meanings assigned to such terms in the Loan Agreement. All meanings to defined terms, unless otherwise indicated, are to be equally applicable to both the singular and plural forms of the terms defined. Article, Section, Schedule, and Exhibit references are to Articles and Sections of and Schedules and Exhibits to this Mortgage, unless otherwise specified. All references to instruments, documents, contracts, and agreements are references to such instruments, documents, contracts, and agreements as the same may be amended, supplemented, and otherwise modified from time to time, unless otherwise specified. The words "hereof", "herein" and "hereunder" and words of similar import when used in this Mortgage shall refer to this Mortgage as a whole and not to any particular provision of this Mortgage. As used herein, the term "including" means "including, without limitation".

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Article II. Creation of Security

Section 2.01 **Conveyance and Grant of Lien.** In consideration of the advances or extensions by the Mortgagee to Mortgagor of the funds or credit constituting the Obligations (including the making of the Loan), and in further consideration of the mutual covenants contained herein, Mortgagor, by this Mortgage does hereby GRANT AND MORTGAGE AND WARRANT to the Mortgagee with a general warranty of title, for the uses, purposes and conditions hereinafter set forth, all of its right, title and interest in and to the Collateral, WITH POWER OF SALE, to secure the payment of the Note in addition to the other Obligations as defined in the Loan Agreement or herein for the benefit of the Mortgagee.

TO HAVE AND TO HOLD the Realty Collateral and the Personalty Collateral unto the Mortgagee and its successors and assigns forever for the benefit of the Mortgagee, together with all and singular the rights, hereditaments and appurtenances thereto in anywise appertaining or belonging, to secure payment of the Obligations and the performance of the covenants of the Mortgage contained in this Mortgage. The Mortgagor does hereby bind itself, its successors and permitted assigns, to warrant and forever defend all and singular the Realty Collateral and the Personalty Collateral unto the Mortgagee and its successors and assigns, against every Person whomsoever lawfully claiming or to claim the same, or: any part thereof; provided, however, that none of the Mortgagee or the Lender shall be liable in any respect for the performance of any covenant or obligation of the Mortgagor in respect of the Collateral.

Section 2.02 **Security Interest.** For the same consideration and to further secure the Obligations, the Mortgagor hereby grants to the Mortgagee for its benefit a security interest in and to the Collateral.

Section 2.03 **Assignment of Liens and Security Interests.** For the same consideration and to further secure the Obligations, the Mortgagor hereby assigns and conveys to the Mortgagee for its benefit any security interests held by the Mortgagor arising under the Oklahoma Uniform Commercial Code-Secured Transactions and the liens granted to the Mortgagor.

Section 2.04 **UNPAID PRINCIPAL AMOUNT AS OF DATE HEREOF.** THE AGGREGATE UNPAID PRINCIPAL AMOUNT OF OBLIGATIONS AND BORROWINGS SECURED HEREBY DOES NOT EXCEED SIX MILLION AND 00/100 DOLLARS (\$6,000,000.00).

Section 2.05 **Mineral Leasing Act.** It is the specific intent of the parties hereto to fully comply with applicable law concerning Federal oil and gas leases. The parties hereto in good faith believe that a grant of this Mortgage as security for the repayment of the Obligations is not the grant of an "interest" (as such term is defined and used in 43 C.F.R. § 3000.0-5(1)) in Federal oil and gas leases to the Mortgagee. In the event that the grant of this

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Mortgage as security for the repayment of the Obligations is determined to grant such an "interest" in Federal oil and gas leases, then such grant shall be deemed to be made to, and shall inure to the benefit of, only those parties that may lawfully hold an interest in Federal oil and gas leases pursuant to the Mineral Leasing Act of 1920, 30 U.S.C. §§ 181 et seq. and the regulations promulgated thereunder, including 43 C.F.R. Subparts 3102 and 3106.

Article III. Proceeds from Production

Section 3.01 Assignment of Production.

(a) In order to further secure the Obligations, the Mortgagor has assigned, transferred, conveyed and delivered and does hereby assign, transfer, convey and deliver unto the Mortgagee, effective as of the Effective Date, at 7:00 a.m. Oklahoma City, Oklahoma time, all Hydrocarbons produced from, and which are attributable to, the Mortgagor's interest, now owned or hereafter acquired, in and to the Oil and Gas Properties, or are allocated thereto pursuant to pooling, communitization or unitization orders, agreements or designations, and all proceeds therefrom.

(b) Subject to the provisions of subsection (f) below, all parties producing, purchasing, taking, possessing, processing or receiving any production from the Oil and Gas Properties, or having in their possession any such production, or the proceeds therefrom, for which they or others are accountable to the Mortgagee by virtue of the provisions of this Section 3.1, are authorized and directed by the Mortgagor to treat and regard the Mortgagee as the assignee and transferee of the Mortgagor and entitled in its place and stead to receive such Hydrocarbons and the proceeds therefrom, to the extent of its interest.

(c) The Mortgagor directs and instructs each of such parties to pay to the Mortgagee for its benefit, all of the proceeds of such Hydrocarbons attributable to the Collateral until such time as such party has been furnished evidence that all of the Obligations have been paid and that the Lien evidenced hereby has been released; provided, however, that until the Mortgagee shall have exercised the right to instruct such parties to deliver all proceeds therefrom directly to the Mortgagee, such parties shall be entitled to deliver such Hydrocarbons and all proceeds therefrom to the Mortgagor for the Mortgagor's use and enjoyment, and the Mortgagor shall be entitled to execute division orders, transfer orders and other instruments as may be required to direct all proceeds to the Mortgagor without the necessity of joinder by the Mortgagee in such division orders, transfer orders or other instruments. The Mortgagor agrees to perform all such acts, and to execute all such further assignments, transfers and division orders, and other instruments as may be reasonably required or desired by the Mortgagee in order to have said revenues and proceeds so paid to the Mortgagee. None of such parties shall have any responsibility for the application of any such proceeds received by the Mortgagee. Subject to the provisions of subsection (f) below, the Mortgagor authorizes the Mortgagee to receive and collect all proceeds of such Hydrocarbons and all proceeds therefrom.

(d) Subject to the provisions of subsection (f) below, in the event an Event of Default shall occur and be continuing, the Mortgagor will execute and deliver to the Mortgagee any instruments the Mortgagee may from time to time request for the purpose of effectuating the assignment contained in this Section 3.1 and the payment to the Mortgagee of the proceeds assigned.

(e) Neither the foregoing assignment nor the exercise by the Mortgagee of any of its rights herein shall be deemed to make the Mortgagee a "mortgagee-in-possession" or otherwise responsible for any portion thereof, unless and until the Mortgagee, in person or by agent, assumes actual possession thereof, nor shall appointment of a receiver for the Collateral by any court at the request of the Mortgagee or by agreement with the Mortgagor be deemed to make the Mortgagee a "mortgagee-in-possession" or otherwise responsible or liable in any manner with respect to the Collateral.

(f) Notwithstanding anything to the contrary contained herein, so long as no Event of Default shall have occurred and be continuing, the Mortgagor shall have the right to collect all revenues and proceeds attributable to the Collateral and to retain, use and enjoy same.

(g) Subject to the provisions of Section 3.01(f) above, in the event an Event of Default shall occur and be continuing, the Mortgagee may endorse and cash any and all checks and drafts payable to the order of the Mortgagor or the Mortgagee for the account of the Mortgagor, received from or in connection with the proceeds of the Collateral, and the same may be applied as provided herein. The Mortgagee may execute any transfer or division orders in the name of the Mortgagor or otherwise, with warranties and indemnities binding on the Mortgagor; provided that the Mortgagee shall not be held liable to the Mortgagor for, nor be required to verify the accuracy of, the Mortgagor's interests as represented therein.

(h) Subject to the provisions of Section 3.01(f) above, in the event an Event of Default shall occur and be continuing, the Mortgagee shall have the right at the Mortgagee's election and in the name of the Mortgagor, or otherwise, to prosecute and defend any and all actions or legal proceedings deemed advisable by the Mortgagee in order to collect such proceeds and to protect the interests of the Mortgagee or the Mortgagor in the Collateral, with all costs, expenses and attorneys' fees incurred in connection therewith being paid by the Mortgagor. In addition, should any purchaser taking production from the Oil and Gas Properties fail to pay promptly to the Mortgagee amounts due from it to the Mortgagor following the occurrence of an Event of Default and such purchaser's receipt of notice from the Mortgagee directing such payment to be made to the Mortgagee in accordance with this Article, the Mortgagee shall have the right to demand a change of connection and to designate another purchaser with whom a new connection may be made without any liability on the part of the Mortgagee in making such election, so long as ordinary care is used in the making thereof, and upon failure of the Mortgagor to consent to such change of connection, the entire

amount of all the Obligations may, at the option of the Mortgagee, be immediately declared to be due and payable and subject to foreclosure hereunder.

(i) Without in any way limiting the effectiveness of the foregoing provisions, if the Mortgagor receives any proceeds which under this Section 3.01 are payable to the Mortgagee, the Mortgagor shall hold the same in trust and remit such proceeds, or cause them to be remitted, immediately, to the Mortgagee.

Section 3.02 **Mortgagor's Payment Duties.** Except as provided in Article VII hereof, nothing contained herein will limit the Mortgagor's absolute duty to make payment of the Obligations regardless of whether the proceeds assigned by this Article III are sufficient to pay the same, and the receipt by the Mortgagee of proceeds from Collateral under this Mortgage will be in addition to all other security now or hereafter existing to secure payment of the Obligations, if any.

Section 3.03 **Liability of the Mortgagee.** The Mortgagee is hereby absolved from all liability for failure to enforce collection of any of such proceeds, and from all other responsibility in connection therewith except the responsibility to account to the Mortgagor for proceeds actually received by the Mortgagee.

Section 3.04 **Actions to Effect Assignment.** Subject to the provisions of Section 3.01(f), the Mortgagor covenants to cause all operators, pipeline companies, production purchasers and other remitters of said proceeds to pay promptly to the Mortgagee the proceeds from the Collateral in accordance with the terms of this Mortgage, and to execute, acknowledge and deliver to said remitters such division orders, transfer orders, certificates and other documents as may be necessary, requested or proper to effect the intent of the assignment contained in this Article III; and the Mortgagee shall not be required at any time, as a condition to its right to obtain the proceeds of the Collateral, to warrant its title thereto or to make any guaranty whatsoever. In addition, the Mortgagor covenants to provide to the Mortgagee, the name and address of every such remitter of proceeds from the Collateral, together with a copy of the applicable division orders, transfer orders, sales contracts and governing instruments. All expenses incurred by the Mortgagee in the collection of said proceeds shall be repaid promptly by the Mortgagor; and prior to such repayment, such expenses shall be a part of the Obligations secured hereby.

Section 3.05 **Power of Attorney.** Without limitation upon any of the foregoing, following the occurrence of an Event of Default and continuance beyond any applicable cure and/or grace period, the Mortgagor hereby designates and appoints the Mortgagee as true and lawful agent and attorney-in-fact (with full power of substitution, either generally or for such periods or purposes as the Mortgagee may from time to time prescribe), with full power and authority, for and on behalf of and in the name of the Mortgagor, to execute, acknowledge and deliver all such division orders, transfer orders, certificates and other documents of every

nature, with such provisions as may from time to time, in the opinion of the Mortgagee, be necessary or proper to effect the intent and purpose of the assignment contained in this Article III; and the Mortgagor shall be bound thereby as fully and effectively as if the Mortgagor had personally executed, acknowledged and delivered any of the foregoing orders, certificates or documents. The powers and authorities herein conferred on the Mortgagee may be exercised by the Mortgagee through any Person who, at the time of exercise, is the president, a senior vice president or a vice president of the Mortgagee. **The power of attorney conferred by this Section 3.05 is granted for valuable consideration and coupled with an interest and is irrevocable so long as Security Termination has not occurred and can only be utilized if an Event of Default has occurred and is continuing.** Any Person dealing with the Mortgagee, or any substitute, shall be fully protected in treating the powers and authorities conferred by this Section 3.05 as continuing in full force and effect until advised by the Mortgagee that Security Termination has occurred.

Section 3.06 **Indemnification.** THE MORTGAGOR AGREES TO INDEMNIFY THE MORTGAGEE AND EACH OF ITS RESPECTIVE DIRECTORS, OFFICERS, EMPLOYEES, AND AGENTS (COLLECTIVELY, THE "INDEMNIFIED PARTIES") FROM, AND DISCHARGE, RELEASE AND HOLD EACH OF THEM HARMLESS AGAINST ALL LOSSES, DAMAGES, CLAIMS, ACTIONS, LIABILITIES, JUDGMENTS, COSTS, ATTORNEYS FEES OR OTHER CHARGES OF WHATSOEVER KIND OR NATURE (HEREAFTER REFERRED TO AS "CLAIMS") MADE AGAINST, IMPOSED ON, INCURRED BY OR ASSERTED AGAINST ANY OF THEM IN ANY WAY RELATING TO OR ARISING OUT OF AN ASSERTION EITHER BEFORE OR AFTER THE PAYMENT IN FULL OF THE OBLIGATIONS THAT ANY OF THE INDEMNIFIED PARTIES RECEIVED PROCEEDS FROM COLLATERAL WHICH ARE CLAIMED BY THIRD PERSONS. THE INDEMNIFIED PARTIES WILL HAVE THE RIGHT TO EMPLOY ATTORNEYS AND TO DEFEND AGAINST ANY SUCH CLAIMS AND UNLESS FURNISHED WITH REASONABLE INDEMNITY, THE INDEMNIFIED PARTIES WILL HAVE THE RIGHT TO PAY OR COMPROMISE AND ADJUST ALL SUCH CLAIMS. THE MORTGAGOR WILL INDEMNIFY AND PAY TO THE INDEMNIFIED PARTIES ALL SUCH AMOUNTS AS MAY BE PAID IN RESPECT THEREOF, OR AS MAY BE SUCCESSFULLY ADJUDICATED AGAINST ANY OF THE INDEMNIFIED PARTIES. THE INDEMNITY UNDER THIS SECTION BY MORTGAGOR SHALL APPLY TO CLAIMS ARISING OR INCURRED BY REASON OF ANY INDEMNIFIED PARTY'S OWN NEGLIGENCE, BUT SHALL NOT APPLY TO CLAIMS DETERMINED BY A COURT OF COMPETENT JURISDICTION BY FINAL AND NONAPPEALABLE JUDGMENT TO HAVE RESULTED FROM THE GROSS NEGLIGENCE OR WILLFUL MISCONDUCT OF THE INDEMNIFIED PARTY OR INDEMNIFIED PARTIES BEING INDEMNIFIED. THE LIABILITIES OF THE MORTGAGOR AS SET FORTH IN THIS SECTION 3.06 SHALL SURVIVE THE TERMINATION OF THIS MORTGAGE.

Article IV. The Mortgagor's Representations, Warranties and Covenants

Section 4.01 **Payment of Obligations.** The Mortgagor covenants that the Mortgagor shall timely pay and perform the Obligations secured by this Mortgage.

Section 4.02 **Representations and Warranties.** The Mortgagor represents and warrants as follows:

(a) *Incorporation of Representations and Warranties from Loan Agreement.* The representations and warranties applicable to the Mortgagor and to its properties contained in the Loan Agreement are hereby confirmed and restated, each such representation and warranty, together with all related definitions and ancillary provisions, being hereby incorporated into this Mortgage by reference as though specifically set forth in this Section.

(b) *Title to Collateral.* The Mortgagor has good and defensible title to the Collateral free from all Liens, claims, security interests or other encumbrances except Permitted Liens (as defined in the Loan Agreement and used herein). There are no "back-in" or "reversionary" interests held by third parties which could reduce the interests of the Mortgagor in the Collateral. No operating or other agreement to which the Mortgagor is a party or by which the Mortgagor is bound affecting any part of the Collateral requires the Mortgagor to bear any of the costs relating to the Collateral greater than the interest of the Mortgagor described on Exhibit A.

(c) *Regulatory Filings and Compliance.* To the best of Mortgagor's knowledge, all necessary and material regulatory filings have been properly made, and all regulatory (including environmental) processes have been complied with by the applicable operators, in all material respects, in connection with the drilling, completion and operation of the Wells on or attributable to the Collateral, the issuance of all rights of way and other surface uses necessary for the exploration, development and transportation to and from such Wells and all other operations related thereto.

Section 4.03 **Further Assurances.**

(a) The Mortgagor covenants that the Mortgagor shall execute and deliver such other and further instruments, and shall do such other and further acts as in the reasonable opinion of the Mortgagee may be necessary or desirable to carry out more effectively the purposes of this Mortgage, including without limiting the generality of the foregoing, (i) prompt correction of any defect in the execution or acknowledgment of this Mortgage, any written instrument comprising part or all of the Obligations, or any other document used in connection herewith; (ii) prompt correction of any defect which may hereafter be discovered in the title to the Collateral, which is reasonably capable of being corrected; and (iii) prompt payment when due and owing of all taxes, assessments and governmental charges imposed on

this Mortgage, upon the interest of the Mortgagee, or upon the income and profits from any of the Collateral, except such taxes as are being contested in good faith by proper proceedings.

(b) The Mortgagor covenants that the Mortgagor shall maintain and preserve the Lien and security interest herein created as a first lien (subject to Permitted Liens) so long as Security Termination has not occurred.

(c) Mortgagor shall immediately notify Mortgagee of any discontinuance of or change in the address of Mortgagor's place of business, residence, chief executive office or office where it keeps records concerning accounts, contract rights and general intangibles.

Section 4.04 **Recording.** The Mortgagor hereby authorizes the Mortgagee to, at the Mortgagor's own expense, record, register, deposit and file this Mortgage and every other instrument in addition or supplement hereto, including applicable financing statements, in such offices and places within the state where the Collateral is located and in the state where the Mortgagor is registered as a limited liability company and at such times and as often as may be necessary to preserve, protect and renew the Lien and security interest herein created as a first lien (subject to Permitted Liens) on real or personal property as the case may be, and otherwise shall do and perform all matters or things necessary or expedient to be done or observed by reason of any legal requirement for the purpose of effectively creating, perfecting, maintaining and preserving the Lien and security interest created hereby in and on the Collateral.

Section 4.05 **Records, Statements and Reports.** The Mortgagor shall keep proper books of record and account in which complete and correct entries shall be made of the Mortgagor's transactions in accordance with the method of accounting required in the Loan Agreement and shall furnish or cause to be furnished to the Mortgagee the reports required to be delivered pursuant to the terms of the Loan Agreement, if any.

Article V. Default

Section 5.01 **Events of Default.** An Event of Default under the terms of the Loan Agreement shall constitute an "Event of Default" under this Mortgage.

Section 5.02 **Acceleration Upon Default.** If an Event of Default (beyond any and all applicable cure periods) shall have occurred and be continuing, the Mortgagee may declare by notice to Mortgagor the entire unpaid principal of, and the interest accrued on, and all other amounts owed in connection with, the Obligations to be forthwith due and payable, whereupon the same shall become immediately due and payable without any protest, presentment, demand, notice of intent to accelerate, notice of acceleration or further notice of any kind, all of which are hereby expressly waived by the Mortgagor. If an Event of Default pursuant to the Loan Agreement shall have occurred, the entire unpaid principal of and interest accrued on, and all other amounts owed

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in connection with, the Obligations, shall immediately and automatically become and be due and payable in full, without presentment, demand, protest or any notice of any kind (including, without limitation, any notice of intent to accelerate or notice of acceleration) all of which are hereby expressly waived by the Mortgagor. If an Event of Default shall have occurred and be continuing, whether or not the Mortgagee elects to accelerate as herein provided, the Mortgagee may simultaneously, or thereafter, without any further notice to the Mortgagor, exercise any other right or remedy provided in this Mortgage or otherwise existing under the Loan Agreement or any other Loan Document or any other agreement, document, or instrument evidencing obligations owing from the Mortgagor to any of the Lender.

Article VI. The Mortgagee's Rights

Section 6.01 Rights to Realty Collateral Upon Default.

(a) *Operation of Collateral by the Mortgagee.* If an Event of Default shall have occurred and be continuing, in addition to all other rights of the Mortgagee, the Mortgagee shall have the following rights and powers (but no obligation):

(i) To enter upon and take control of the Collateral and exclude the Mortgagor therefrom;

(ii) To hold, use, and administer the Collateral to the extent that the Mortgagor could do so, and without any liability to the Mortgagor in connection therewith; and

(b) To the extent that the Mortgagor could do so, to collect, receive and receipt for all proceeds of the Collateral and to exercise every power, right and privilege of the Mortgagor with respect to the Collateral.

(c) *Judicial Proceedings.* If an Event of Default shall have occurred and be continuing, the Mortgagee, in lieu of or in addition to exercising the power of sale provided herein, may proceed by a suit or suits, in equity or at law (i) for the specific performance of any covenant or agreement herein contained or in aid of the execution of any power herein granted, (ii) for the appointment of a receiver whether there is then pending any foreclosure hereunder or the sale of the Collateral, or (iii) for the enforcement of any other appropriate legal or equitable remedy; and further, in lieu of the non-judicial power of sale hereafter given for Collateral located in the State of Oklahoma, the Mortgagee may proceed for foreclosure or sale of the Collateral by judicial action.

(d) *Foreclosure by Private Power of Sale of Collateral.* If an Event of Default shall have occurred and be continuing, the Mortgagee shall have the right and power to sell, as the Mortgagee may elect, all or a portion of the Collateral at one or more sales as an entirety or in parcels, in accordance with the applicable laws of the State of Oklahoma, as

amended from time to time (or any successor provisions of Oklahoma law governing real property foreclosure sales) or with any applicable state law of the state where any of the Collateral is located. The Mortgagor hereby designates as the Mortgagor's address for the purpose of notice the address set forth in Article VII; provided, that the Mortgagor may by written notice to the Mortgagee designate a different address for notice purposes. Any purchaser or purchasers may be provided with a special warranty, subject to Permitted Liens, which conveyance shall be binding on the Mortgagor and the Mortgagor's successors and assigns. The Mortgagor hereby consents and agrees that, at the election of the Mortgagee, any disposition of all or part of the Collateral may be made without warranty of any kind whether expressed or implied. Sale of a part of the Collateral will not exhaust the power of sale, and sales may be made from time to time until all of the Collateral is sold, or all of the Obligations are paid in full. The Mortgagee may elect to foreclose this Mortgage by advertisement and sale, this grant, being a power of sale, as provided by Oklahoma Statutes, as amended from time to time. Any sale of Collateral conducted pursuant to this Mortgage shall take place at such place or places and otherwise in such manner and upon such notices as may be required by law; or, in the absence of such requirement, as the Mortgagee may deem appropriate.

(e) *Certain Aspects of Sale.* The Mortgagee will have the right to become the purchaser at any foreclosure sale and to credit the then outstanding balance of the Obligations against the amount payable by the Mortgagee as purchaser at such sale. Statements of fact or other recitals contained in any conveyance to any purchaser or purchasers at any sale made hereunder will conclusively establish the occurrence of an Event of Default and continuance beyond any applicable cure and/or grace period, any acceleration of the maturity of the Obligations, the advertisement and conduct of such sale in the manner provided herein, and the truth and accuracy of all other matters stated therein except for any of the foregoing based on manifest error by Mortgagee. The Mortgagor does hereby ratify and confirm all legal acts that the Mortgagee may do in carrying out the Mortgagee's duties and obligations under this Mortgage, and following the continuance of an Event of Default, the Mortgagor hereby irrevocably appoints the Mortgagee to be the attorney-in-fact of the Mortgagor and in the name and on behalf of the Mortgagor to execute and deliver any deeds, transfers, conveyances, assignments, assurances and notices which the Mortgagor ought to execute and deliver and do and perform any and all such acts and things which the Mortgagor ought to do and perform under the covenants herein contained and generally to use the name of the Mortgagor in the exercise of all or any of the powers hereby conferred or conferred by law on the Mortgagee. Upon any sale, whether under the power of sale hereby given or by virtue of judicial proceedings, it shall not be necessary for the Mortgagee or any public officer acting under execution or by order of court, to have physically present or constructively in his possession any of the Collateral, and the Mortgagor hereby agrees to deliver to the purchaser or purchasers at such sale on the date of sale the Collateral purchased by such purchasers at such sale and if it should be impossible or impracticable to make actual delivery of such Collateral, then the title and right of possession to such Collateral shall pass to the purchaser or purchasers at such sale as completely as if the same had been actually present and delivered.

(f) *Receipt to Purchaser.* Upon any sale made under the power of sale herein granted, the receipt of the Mortgagee will be sufficient discharge to the purchaser or purchasers at any sale for its purchase money, and such purchaser or purchasers, will not, after paying such purchase money and receiving such receipt of the Mortgagee, be obligated to see to the application of such purchase money or be responsible for any loss, misapplication or non-application thereof.

(g) *Effect of Sale.* Any sale or sales of the Collateral will operate to divest all right, title, interest, claim and demand whatsoever, either at law or in equity, of the Mortgagor in and to the Collateral sold, and will be a perpetual bar, both at law and in equity, against the Mortgagor, the Mortgagor's successors or assigns, and against any and all Persons claiming or who shall thereafter claim all or any of the Collateral sold by, through or under the Mortgagor, or the Mortgagor's successors or assigns. Nevertheless, if requested by the Mortgagee so to do, the Mortgagor shall join in the execution and delivery of all proper conveyances, assignments and transfers of the Collateral so sold. The purchaser or purchasers at the foreclosure sale will receive as incident to his, her, its or their own ownership, immediate possession of the Collateral purchased and the Mortgagor agrees that if the Mortgagor retains possession of the Collateral or any part thereof subsequent to such sale, the Mortgagor will be considered a tenant at sufferance of the purchaser or purchasers and will be subject to eviction and removal by any lawful means, with or without judicial intervention, and all damages by reason thereof are hereby expressly waived by the Mortgagor.

(h) *Application of Proceeds.* The proceeds of any sale of the Collateral or any part thereof, whether under the power of sale herein granted and conferred or by virtue of judicial proceedings, shall be applied as required by applicable law, or in the absence of such requirement, at the option of the Mortgagee, applied at the time of receipt, applied as required by applicable law, or in the absence of such requirement, applied in the order set forth in the Loan Agreement.

(i) *The Mortgagor's Waiver of Appraisement and Marshalling.* The Mortgagor agrees, to the full extent that the Mortgagor may lawfully so agree, that the Mortgagor will not at any time insist upon or plead or in any manner whatever claim the benefit of any appraisement, valuation, stay, extension or redemption law, now or hereafter in force, in order to prevent or hinder the enforcement or foreclosure of this Mortgage, the absolute sale of the Collateral, or the possession thereof by any purchaser at any sale made pursuant to this Mortgage or pursuant to the decree of any court of competent jurisdiction; and the Mortgagor, for the Mortgagor and all who may claim by, through or under the Mortgagor, hereby waives the benefit of all such laws and, to the extent that the Mortgagor may lawfully do so under any applicable law, any and all rights to have the Collateral, including the Collateral, marshaled upon any foreclosure of the Lien hereof or sold in inverse order of alienation. To the extent permitted under applicable law, the Mortgagor agrees that the Collateral may be sold in part, in parcels or as an entirety as directed by the Mortgagee.

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Section 6.02 **Additional Rights to Personalty Collateral Upon Default.** To the extent, if any, applicable law permits, if an Event of Default shall have occurred and be continuing, the Mortgagee may proceed against the Personalty Collateral in accordance with the rights and remedies granted herein with respect to the Realty Collateral, and in addition, will have all rights and remedies granted by the Uniform Commercial Code as in effect in Oklahoma and this Mortgage. The Mortgagee shall have the right to take possession of the Personalty Collateral, and for this purpose the Mortgagee may enter upon any premises on which any or all of the Personalty Collateral is situated and, to the extent that the Mortgagor could do so, take possession of and operate the Personalty Collateral or remove it therefrom. Unless the Personalty Collateral is perishable or threatens to decline speedily in value or is of a type customarily sold on a recognized market, the Mortgagee will send the Mortgagor reasonable notice of the time and place of any public sale or of the time after which any private sale or other disposition of the Personalty Collateral is to be made. This requirement of sending reasonable notice will be met if such notice is mailed, postage prepaid, to the Mortgagor at the address designated in Section 7.12 hereof (or such other address as has been designated as provided herein) at least ten days before the time of the sale or disposition. In addition to the expenses of retaking, holding, preparing for sale, selling and the like, the Mortgagee will be entitled to recover attorney's fees and legal expenses as provided for in this Mortgage and in the writings evidencing the Obligations before applying the balance of the proceeds from the sale or other disposition toward satisfaction of the Obligations. The Mortgagor will remain liable for any deficiency remaining after the sale or other disposition. The Mortgagor hereby consents and agrees that any disposition of all or a part of the Collateral may be made without warranty of any kind whether expressed or implied.

Section 6.03 **Costs and Expenses.** All sums advanced or costs or expenses incurred by the Mortgagee (either by it directly or on its behalf by any receiver appointed hereunder) in protecting and enforcing its rights hereunder shall constitute a demand obligation owing by the Mortgagor to the Mortgagee as part of the Obligations and may be included as part of the amount owing from the Mortgagor to the Mortgagee at any foreclosure sale. The Mortgagor hereby agrees to repay such sums on demand plus interest thereon at the applicable rate of interest set forth in the Loan Agreement from the date of the advance or incurrence until reimbursement of the Mortgagee with interest.

Section 6.04 **Set-Off.** If an Event of Default shall have occurred and be continuing, Mortgagee shall have the right to set-off any funds of the Mortgagor in the possession of Mortgagee against any amounts then due by the Mortgagor pursuant to this Mortgage.

Section 6.05 **Federal and Tribal Transfers.** Upon a sale conducted pursuant to this Article VI of all or any portion of the Realty Collateral consisting of interests (the "**Federal and Tribal Interests**") in leases, easements, rights-of-way, agreements or other documents and instruments covering, affecting or otherwise relating to federal or tribal lands (including, without limitation, leases, easements and rights-of-way issued by the Bureau of Land Management; leases, easements and rights-of-way issued by -the Bureau of Indian Affairs;

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and leases, easements, rights-of-way and minerals agreements with tribal governments or agencies or allottees), the Mortgagor agrees to take all action and execute all instruments necessary or advisable to transfer the Federal and Tribal Interests to the purchaser at such sale, including without limitation, to execute, acknowledge and deliver assignments of the Federal and Tribal Interests on officially approved forms in sufficient counterparts to satisfy applicable statutory and regulatory requirements, to seek and request approval thereof and to take all other action necessary or advisable in connection therewith. Following the occurrence of any Event of Default and continuance beyond any applicable cure and/or grace period, the **Mortgagor hereby irrevocably appoints the Mortgagee as the Mortgagor's attorney-in-fact and proxy, with full power and authority in the place and stead of the Mortgagor,** in the name of the Mortgagor or otherwise, to take any such action and to execute any such instruments on behalf of the Mortgagor that the Mortgagee may deem necessary or advisable to so transfer the Federal and Tribal Interests, including without limitation, the power and authority to execute, acknowledge and deliver such assignments, to seek and request approval thereof and to take all other action deemed necessary or advisable by Mortgagee in connection therewith; and the Mortgagor hereby adopts, ratifies and confirms all such actions and instruments. **Such power of attorney and proxy is coupled with an interest, shall survive the dissolution, termination, reorganization or other incapacity of the Mortgagor and shall be irrevocable, except in the event of Security Termination.** No such action by the Mortgagee shall constitute acknowledgment of, or assumption of liabilities relating to, the Federal and Tribal Interests, and neither the Mortgagor nor any other party may claim that the Mortgagee is bound, directly or indirectly, by any such action.

Section 6.06 **Limitations on Rights and Waivers.** All rights, powers and remedies herein conferred shall be exercisable by the Mortgagee only to the extent not prohibited by applicable law; and all waivers and relinquishments by Mortgagor or Mortgagee, as applicable, of rights and similar matters shall be effective only to the extent such waivers or relinquishments are not prohibited by applicable law.

Article VII. Miscellaneous

Section 7.01 **Advances by the Mortgagee.** Each and every covenant of the Mortgagor herein contained shall be performed and kept by the Mortgagor solely at the Mortgagor's expense. If the Mortgagor fails to perform or keep any of the covenants of whatsoever kind or nature contained in this Mortgage, the Mortgagee (either by it directly or on its behalf by any receiver appointed hereunder) may, but will not be obligated to, make advances to perform the same on the Mortgagor's behalf, and the Mortgagor hereby agrees to repay such sums and any attorneys' fees incurred in connection therewith on demand plus interest thereon from the date of the advance until reimbursement of the Mortgagee at the applicable rate of interest set forth in the Loan Agreement. In addition, the Mortgagor hereby agrees to repay on demand any costs, expenses and attorney's fees incurred by the Mortgagee which are to be obligations of the Mortgagor pursuant to, or allowed by, the terms of this

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Mortgage, including such costs, expenses and attorney's fees incurred pursuant to Section 3.01, Section 6.05 or Section 7.02 hereof, plus interest thereon from the date of such demand by the Mortgagee until reimbursement of the Mortgagee with interest at the applicable rate of interest set forth in the Loan Agreement. Such amounts will be in addition to any sum of money which may, pursuant to the terms and conditions of the written instruments comprising part of the Obligations, be due and owing. No such advance will be deemed to relieve the Mortgagor from any default hereunder.

Section 7.02 **Defense of Claims.** The Mortgagor shall promptly notify the Mortgagee in writing of the commencement of any legal proceedings affecting the Mortgagor's title to the Collateral or this Mortgage or Mortgagee's security interest in the Collateral, or any part thereof, and shall take such action, employing attorneys reasonably acceptable to the Mortgagee, as may be reasonably necessary to preserve the Mortgagor's and the Mortgagee's rights affected thereby. If the Mortgagor fails or refuses to adequately or vigorously, in the sole judgment of the Mortgagee, defend the Mortgagor's or the Mortgagee's rights to the Collateral, the Mortgagee may take such action on behalf of and in the name of the Mortgagor and at the Mortgagor's expense. Moreover, the Mortgagee may take such independent action in connection therewith as it may in its discretion deem proper, including the right to employ independent counsel and to intervene in any suit affecting the Collateral. All costs, expenses and attorneys' fees incurred by the Mortgagee pursuant to this Section 7.02 or in connection with the defense by the Mortgagee of any claims, demands or litigation relating to the Mortgagor, the Collateral or the transactions contemplated in this Mortgage shall be paid by the Mortgagor on demand plus interest thereon from the date of the advance by the Mortgagee until reimbursement of the Mortgagee with interest at the applicable rate of interest set forth in the Loan Agreement.

Section 7.03 **Termination.** If Security Termination has occurred and the covenants herein contained are fully performed, then all of the Collateral will revert to the Mortgagor to the extent not otherwise transferred or sold as permitted under applicable law or under this Mortgage and the entire estate, right, title and interest of the Mortgagee will thereupon cease; and the Mortgagee in such case shall, upon the request of the Mortgagor and the payment by the Mortgagor of all attorneys' fees and other expenses, deliver to the Mortgagor proper instruments acknowledging satisfaction of this Mortgage and the termination of the liens and security interests created hereby.

Section 7.04 **Renewals, Amendments and Other Security.** Without notice or consent of the Mortgagor, Renewals and extensions of the written instruments constituting part or all of the Obligations may be given at any time and amendments may be made to agreements relating to any part of such written instruments or the Collateral. The Mortgagee may take or hold other security from Persons other than the Mortgagor for the Obligations without notice to or consent of the Mortgagor. The acceptance of this Mortgage by the Mortgagee shall not waive or impair any other security the Mortgagee may have or hereafter acquire to secure the payment of the Obligations and the taking of any such additional security shall not waive or impair the Lien and

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security interests herein granted. The Mortgagee may resort first to such other security or any part thereof, or first to the security herein given or any part thereof, or from time to time to either or both, even to the partial or complete abandonment of either security, and such action will not be a waiver of any rights conferred by this Mortgage. This Mortgage may not be amended, waived or modified except in a written instrument executed by both the Mortgagor and the Mortgagee.

Section 7.05 **Security Agreement and Financing Statement.** This Mortgage will be deemed to be and may be enforced from time to time as an assignment, chattel mortgage, contract, deed of trust, financing statement, real estate mortgage, or security agreement, and from time to time as any one or more thereof if appropriate under applicable state law. **AS A FINANCING STATEMENT, THIS MORTGAGE IS INTENDED TO COVER ALL PERSONALTY COLLATERAL INCLUDING MORTGAGOR'S INTEREST IN ALL HYDROCARBONS AS AND AFTER THEY ARE EXTRACTED AND ALL ACCOUNTS ARISING FROM THE SALE THEREOF AT THE WELLHEAD. THIS MORTGAGE SHALL BE EFFECTIVE AS A FINANCING STATEMENT WITH RESPECT TO THE COLLATERAL.** This Mortgage shall be filed in the real estate records or other appropriate records of the county or counties in the state in which any part of the Realty Collateral is located as well as the Uniform Commercial Code records of the Secretary of State or other appropriate office of the state in which the Mortgagor is located. At the Mortgagee's request, the Mortgagor shall deliver financing statements covering the Personalty Collateral, including all Hydrocarbons sold at the wellhead, which financing statements may be filed in the Uniform Commercial Code records or other appropriate office of the county or state in which any of the Collateral is located or in any other location permitted or required to perfect the Mortgagee's security interest under the Uniform Commercial Code. In addition, the Mortgagor hereby irrevocably authorizes the Mortgagee and any affiliate, employee or agent thereof, at any time and from time to time, to file in any Uniform Commercial Code jurisdiction any financing statement or document and amendments thereto, without the signature of the Mortgagor where permitted by law, in order to perfect or maintain the perfection of any security interest granted under this Mortgage. A photographic or other reproduction of this Mortgage shall be sufficient as a financing statement.

This Mortgage shall be deemed to be a financing statement within the meaning of the Oklahoma Uniform Commercial Code and is to be filed for record in the real property records of the counties identified on Exhibit "A". For such purpose the following information is furnished:

- | | |
|--|---|
| A. Name and Address of Debtor | See name and address of Mortgagor on Page 1 |
| B. Debtor organization type and jurisdiction | Delaware limited liability company |
| C. Name and Address of Secured Party | See name and address of Mortgagee on Page 1 |
| D. Description of the types (or items) of property covered by this Financing Statement | As-extracted collateral (including Hydrocarbons) as more particularly described in the definition of Collateral |
| E. Description of Real Estate | See Exhibit A attached hereto to which collateral is attached or upon which its located |

F. Record owner of real estate

Mortgagor; see Exhibit A attached hereto

Section 7.06 **Unenforceable or Inapplicable Provisions.** If any term, covenant, condition or provision hereof is invalid, illegal or unenforceable in any respect, the other provisions hereof will remain in full force and effect and will be liberally construed in favor of the Mortgagee in order to carry out the provisions hereof.

Section 7.07 **No Waiver.** Each and every right, power and remedy herein given to the Mortgagee will be cumulative and not exclusive, and each and every right, power and remedy whether specifically herein given or otherwise existing may be exercised from time to time and as often and in such order as may be deemed expedient by the Mortgagee, as the case may be, and the exercise, or the beginning of the exercise, of any such right, power or remedy will not be deemed a waiver of the right to exercise, at the same time or thereafter, any other right, power or remedy. No delay or omission by the Mortgagee in the exercise of any right, power or remedy will impair any such right, power or remedy or operate as a waiver thereof or of any other right, power or remedy then or thereafter existing.

Section 7.08 **Waiver by the Mortgagee.** Any and all covenants in this Mortgage may from time to time by instrument in writing by the Mortgagee be waived to such extent and in such manner as the Mortgagee may desire, but no such waiver will ever affect or impair the Mortgagee's rights hereunder, except to the extent specifically stated in such written instrument.

Section 7.09 **Terms.** The term "Mortgagor" as used in this Mortgage will be construed as singular or plural to correspond with the number of Persons executing this Mortgage as the Mortgagor. If more than one Person executes this Mortgage as the Mortgagor, his, her, its, or their duties and liabilities under this Mortgage will be joint and several. The terms "the Mortgagee" and "Mortgagor" as used in this Mortgage include the heirs, executors or administrators, successors, representatives, receiver, trustees and assigns of those parties. Unless the context otherwise requires, terms used in this Mortgage that are defined in the Uniform Commercial Code of Oklahoma are used with the meanings therein defined.

Section 7.10 **Counterparts.** This Mortgage may be executed in any number of counterparts, each of which will for all purposes be deemed to be an original, and all of which are identical except that, to facilitate recordation, in any particular counties counterpart portions of Exhibit A hereto which describe Properties situated in counties other than the counties in which such counterpart is to be recorded may have been omitted.

Section 7.11 **Governing Law.** This Mortgage shall be governed by and construed in accordance with the laws of the State of Oklahoma.

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Section 7.12 **Notice.** All notices required or permitted to be given by the Mortgagor or the Mortgagee shall be made in the manner set forth in the Loan Agreement and shall be addressed as follows:

the Mortgagor: Montage Minerals LLC
2201 S. Utica Place, Suite 100
Tulsa, OK 74114
Attn: Chase Williams/Doyle Williams

the Mortgagee: Sovereign Bank
3030 Northwest Expressway, Suite 130
Oklahoma City, OK 73112
Attn: Randy Stafford

Section 7.13 **Condemnation.** All awards and payments heretofore and hereafter made for the taking of or injury to the Collateral or any portion thereof whether such taking, or injury be done under the power of eminent domain or otherwise, are hereby assigned, and shall be paid to the Mortgagee. The Mortgagee is hereby authorized to collect and receive the proceeds of such awards and payments and to give proper receipts and acquittances therefor. The Mortgagor hereby agrees to make, execute and deliver, upon request, any and all assignments and other instruments sufficient for the purpose of confirming this assignment of the awards and payments to the Mortgagee free and clear of any encumbrances of any kind or nature whatsoever. Any such award or payment may, at the option of the Mortgagee, be retained and applied by the Mortgagee after payment of attorneys' fees, costs and expenses incurred in connection with the collection of such award or payment toward payment of all or a portion of the Obligations, whether or not the Obligations are then due and payable, or be paid over wholly or in part to the Mortgagor for the purpose of altering, restoring or rebuilding any part of the Collateral which may have been altered, damaged or destroyed as a result of any such taking, or other injury to the Collateral.

Section 7.14 **Successors and Assigns.**

(a) This Mortgage is binding upon the Mortgagor and the Mortgagor's successors and assigns and shall inure to the benefit of and be binding upon the Mortgagee and the Mortgagee's successors and assigns, and the provisions hereof shall likewise be covenants running with the land.

(b) This Mortgage shall be transferable and negotiable, with the same force and effect and to the same extent as the Obligations may be transferable, it being understood that, upon the legal transfer or assignment by the Lender (or any of them) of any of the Obligations, the legal holder of such Obligations shall have all of the rights granted to the Mortgagee under this Mortgage. The Mortgagor specifically agrees that, to the extent permitted by applicable law, upon

any transfer of all or any portion of the Obligations, this Mortgage shall secure with retroactive rank the existing Obligations of the Mortgagor to the transferee and any and all Obligations to such transferee thereafter arising.

(c) The Mortgagor hereby recognizes and agrees that the Mortgagee may, from time to time, one or more times, transfer all or any portion of the Obligations to one or more third parties. Such transfers may include, but are not limited to, sales of participation interests in such Obligations in favor of one or more third parties. Upon any transfer of all or any portion of the Obligations, the Mortgagee may transfer and deliver any and/or all of the Collateral to the transferee of such Obligations and such Collateral shall secure any and all of the Obligations in favor of such a transferee then existing and thereafter arising, and after any such transfer has taken place, the Mortgagee shall be fully discharged from any and all future liability and responsibility to the Mortgagor with respect to such Collateral, and transferee thereafter shall be vested with all the powers, rights and duties with respect to such Collateral.

Section 7.15 **Article and Section Headings.** The article and section headings in this Mortgage are inserted for convenience of reference and shall not be considered a part of this Mortgage or used in its interpretation.

Section 7.16 **Usury Not Intended.** It is the intent of the Mortgagor and the Mortgagee in the execution and performance of this Mortgage, the Loan Agreement and the other Loan Documents to contract in strict compliance with applicable usury laws governing the Obligations, including such applicable usury laws of the State of Oklahoma and the United States of America as are from time-to-time in effect. In furtherance thereof, the Mortgagee and the Mortgagor stipulate and agree that none of the terms and provisions contained in this Mortgage, the Loan Agreement or the other Loan Documents shall ever be construed to create a contract to pay, as consideration for the use, forbearance or detention of money, interest at a rate in excess of the maximum non-usurious rate permitted by applicable law and that for purposes hereof "interest" shall include the aggregate of all charges which constitute interest under such laws that are contracted for, charged or received under this Mortgage, the Loan Agreement and the other Loan Documents; and in the event that, notwithstanding the foregoing, under any circumstances the aggregate amounts taken, reserved, charged, received or paid on the Obligations, include amounts which by applicable law are deemed interest which would exceed the maximum non-usurious rate permitted by applicable law, then such excess shall be deemed to be a mistake and the Mortgagee shall credit the same on the principal of the Obligations (or if the Obligations shall have been paid in full, refund said excess to the Mortgagor). In the event that the maturity of the Obligations is accelerated by reason of any election of the Mortgagee resulting from an Event of Default, or in the event of any required or permitted prepayment, then such consideration that constitutes interest may never include more than the maximum non-usurious rate permitted by applicable law and excess interest, if any, provided for in this Mortgage, the Loan Agreement or other Loan Documents shall be canceled automatically as of the date of such acceleration and prepayment and, if theretofore paid, shall be credited on the Obligations or, if the Obligations shall have been paid in

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full, refunded to the Mortgagor. In determining whether or not the interest paid or payable under any specific contingencies exceeds the maximum non-usurious rate permitted by applicable law, the Mortgagor and the Mortgagee shall to the maximum extent permitted under applicable law amortize, prorate, allocate and spread in equal part during the period of the full stated term of the Obligations, all amounts considered to be interest under applicable law of any kind contracted for, charged, received or reserved in connection with the Obligation.

Section 7.17 **Loan Agreement.** To the fullest extent possible, the terms and provisions of the Loan Agreement shall be read together with the terms and provisions of this Mortgage so that the terms and provisions of this Mortgage do not conflict with the terms and provisions of the Loan Agreement; provided, however, notwithstanding the foregoing, in the event that any of the terms or provisions of this Mortgage conflict with any terms or provisions of the Loan Agreement, the terms or provisions of the Loan Agreement shall govern and control for all purposes; provided that the inclusion in this Mortgage of terms and provisions, supplemental rights or remedies in favor of the Mortgagee not addressed in the Loan Agreement shall not be deemed to be a conflict with the Loan Agreement and all such additional terms, provisions, supplemental rights or remedies contained herein shall be given full force and effect.

Section 7.18 **Due Authorization.** The Mortgagor hereby represents, warrants and covenants to the Mortgagee that (a) the obligations of the Mortgagor under this Mortgage are the valid, binding and legally enforceable obligations of the Mortgagor, except as such enforceability may be limited by any applicable bankruptcy, insolvency, reorganization, moratorium, or similar law affecting creditors' rights generally and by general principles of equity, (b) the execution, ensealing and delivery of this Mortgage by the Mortgagor has been duly and validly authorized in all respects by the Mortgagor, and (c) the persons who are executing and delivering this Mortgage on behalf of the Mortgagor have full power, authority and legal right to so do, and to observe and perform all of the terms and conditions of this Mortgage on the Mortgagor's part to be observed or performed.

Section 7.19 **No Offsets, Etc.** The Mortgagor hereby represents, warrants and covenants to the Mortgagee that, to the extent not inconsistent with applicable law, there are no offsets, counterclaims or defenses at law or in equity against this Mortgage or the indebtedness secured hereby.

Section 7.20 **DEFICIENCY JUDGMENT.** THE MORTGAGEE HAS THE RIGHT TO PROCEED TO OBTAIN AND COLLECT DEFICIENCY JUDGMENT, TOGETHER WITH FORECLOSURE OF THE COLLATERAL TO THE EXTENT AVAILABLE UNDER APPLICABLE LAW.

Section 7.21 **Effectiveness.** This Mortgage shall become effective upon its execution and delivery by the Mortgagor.

Section 7.22 **Final Agreement.** THIS WRITTEN AGREEMENT AND THE OTHER LOAN DOCUMENTS REPRESENT THE FINAL AGREEMENT AMONG THE PARTIES AND MAY NOT BE CONTRADICTED BY EVIDENCE OF PRIOR, CONTEMPORANEOUS, OR SUBSEQUENT ORAL AGREEMENTS OF THE PARTIES. THERE ARE NO UNWRITTEN ORAL AGREEMENTS AMONG THE PARTIES.

[SIGNATURE PAGE(S) TO FOLLOW]

I-2025-012817

Book 3047 Pg 933

McClain County

12/08/2025 9:51am

Pg 0908-0940

Fee: \$82.00 Doc: \$0.00

Rebekah Couch - McClain County Clerk

State of OK

IN WITNESS WHEREOF, the undersigned have executed this Mortgage as of the dates set forth in the acknowledgements below but to be effective as of the day and year first written above.

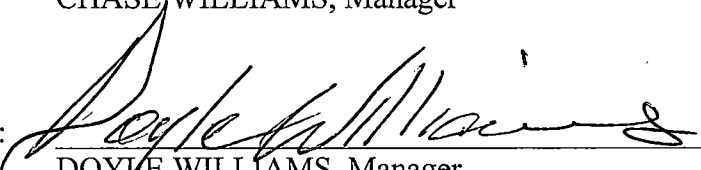
MORTGAGOR:

MONTAGE MINERALS, LLC,
a Delaware limited liability company

By:


CHASE WILLIAMS, Manager

By:


DOYLE WILLIAMS, Manager

Acknowledgements

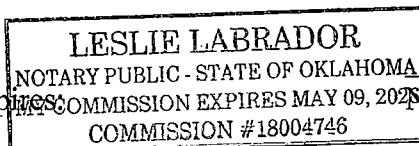
STATE OF Oklahoma
COUNTY OF Oklahoma ss:

Before me, a Notary Public in and for said County and State, on this 1 day of December, 2025, personally appeared **Chase Williams**, Manager of Montage Minerals LLC, to me known to be the identical person who subscribed his name to the foregoing instrument and acknowledged to me that he executed the same as his free and voluntary act and deed, for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

(SEAL)

My Commission Expires



Leslie Labrador
NOTARY PUBLIC

Commission No.

STATE OF Oklahoma
COUNTY OF Oklahoma ss:

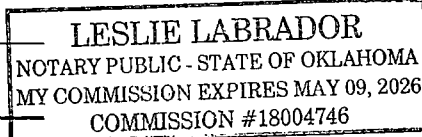
Before me, a Notary Public in and for said County and State, on this 1 day of December, 2025, personally appeared **Doyle Williams**, Manager of Montage Minerals LLC, to me known to be the identical person who subscribed his name to the foregoing instrument and acknowledged to me that he executed the same as his free and voluntary act and deed, for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

(SEAL)

My Commission Expires:

Commission No.



Leslie Labrador
NOTARY PUBLIC

I-2025-012817

Book 3047 Pg 935

12/08/2025 9:51am

Pg 0908-0940

Fee: \$82.00 Doc: \$0.00

Rebekah Couch - McClain County Clerk

State of OK

MORTGAGEE:

SOVEREIGN BANK,
an Oklahoma banking corporation

By:



ANDREW HARALSON, SVP

STATE OF Oklahoma
COUNTY OF Oklahoma) ss:

Before me, a Notary Public in and for said County and State, on this 1 day of December, 2025, personally appeared **Andrew Harlason**, SVP of Sovereign Bank, to me known to be the identical person who subscribed his name to the foregoing instrument and acknowledged to me that he executed the same as his free and voluntary act and deed, for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

(S E A L)

My Commission Expires:


NOTARY PUBLIC

Commission No.

— **LESLIE LABRADOR**
NOTARY PUBLIC - STATE OF OKLAHOMA
MY COMMISSION EXPIRES MAY 03, 2026
— COMMISSION #18004746

1-2025-012817

Book 3047 Pg 936

12/08/2025 9:51am

Pg 0908-0940

Fee: \$82.00 Doc: \$0.00

Rebekah Couch - McClain County Clerk

State of OK

EXHIBIT A
to
MORTGAGE, SECURITY AGREEMENT, FINANCING STATEMENT, AND
ASSIGNMENT OF PRODUCTION

All of the Mortgagor's right, title and interest in and to the oil and gas properties are hereinafter described in this Exhibit "A" including, but not limited to, the Mortgagor's interest in the oil and gas wells and the oil and gas leases and items of personal property now owned or hereafter acquired by the Mortgagor, wherever located, and used or to be used in the ownership, operation, maintenance, management and sale of hydrocarbons from such oil and gas properties hereinafter described.

The references to recording data hereinafter are to the official records of each respective county and state, and each assignment to the Mortgagor is incorporated herein by reference for a full description of the interest mortgaged herein. The assignment under this Mortgage covers and includes all rights of the Mortgagor in and to all operating agreements, farm out agreements, and the like.

Any reference in this Exhibit A to wells or units is for warranty of interest, administrative convenience, and identification and shall not limit or restrict the right, title, interest, or properties covered by this Mortgage and shall not be deemed to ratify or create any rights in third parties.

The reference to book or volume and page and/or entry herein and in Exhibit A refer to the county where the Collateral is located.

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 12/08/2025 9:51am Pg 0908-0940
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EXHIBIT "A"
(Continued)

Well Name	API	Well #	S	T	R	STR	Location	Legal	Interest
GUINNESS 0604 29-32- 5 2WXH	35087223720000	0604 29- 32-5 2WXH	05	05N	04W	5-05N- 04W	BOTTOM	NE4 NW4 SE4 SW4	Not In Inventory List
GUINNESS 0604 29-32- 5 3WXH	35087223730000	0604 29- 32-5 3WXH	05	05N	04W	5-05N- 04W	BOTTOM	NE4 SW4 NW4 SE4	Not In Inventory List
GUINNESS 0604 29-32- 5 4WXH	35087223740000	0604 29- 32-5 4WXH	05	05N	04W	5-05N- 04W	BOTTOM	SE4 NW4 NE4 SE4	Not In Inventory List
DOGFISH FED 0604 31-30 2WXH	35087223830000	0604 31- 30 2WXH	06	05N	04W	6-05N- 04W	SURFACE	NE4 NW4 NE4 NE4	Not In Inventory List
SMITH 1	35087212630000	1	17	05N	04W	17-05N- 04W	SURFACE	SE4 NW4 SE4 SE4	Not In Inventory List
MOOSE 0604 20- 4WH	35087223820000	0604-20- 4WH	20	06N	04W	20-06N- 04W		NW4 NW4 NE4 NW4	Minerals
MOOSE 0604 20- 4WH	35087223820000	0604-20- 4WH	20	06N	04W	20-06N- 04W	BOTTOM	SE4 SE4 S4 SW4	Minerals
MOOSE 0604 20- 4WH	35087223820000	0604-20- 4WH	20	06N	04W	20-06N- 04W	SURFACE	NW4 NW4 NE4 NW4	Minerals

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MOOSE 0604 29-20 5WXH	35087223750000	0604 29- 20 5WXH	20	06N	04W	20-06N- 04W	BOTTOM	SW4 NW4 NE4 NE4	Minerals
MOOSE FED 0604 20-29- 2WXH	35087223800000	0604 20- 29-2WXH	20	06N	04W	20-06N- 04W	SURFACE	NW4 NW4 NE4 NW4	Minerals
GUINNESS 0604 29-32- 5 2WXH	35087223720000	0604 29- 32-5 2WXH	29	06N	04W	29-06N- 04W	SURFACE	SE4 NW4 SW4 SE4	Minerals
GUINNESS 0604 29-32- 5 3WXH	35087223730000	0604 29- 32-5 3WXH	29	06N	04W	29-06N- 04W	SURFACE	SE4 NW4 SW4 SE4	Minerals
GUINNESS 0604 29-32- 5 4WXH	35087223740000	0604 29- 32-5 4WXH	29	06N	04W	29-06N- 04W	SURFACE	SE4 NW4 SW4 SE4	Minerals
MOOSE 0604 29-20 5WXH	35087223750000	0604 29- 20 5WXH	29	06N	04W	29-06N- 04W	SURFACE	SE4 NW4 SW4 SE4	Minerals
MOOSE 1- 29WH	35087221230000	1-29WH	29	06N	04W	29-06N- 04W	BOTTOM	NW4 NW4 NW4 NE4	Minerals
MOOSE 1- 29WH	35087221230000	1-29WH	29	06N	04W	29-06N- 04W	SURFACE	SW4 SW4 SW4 SE4	Minerals
MOOSE FED 0604 20-29- 2WXH	35087223800000	0604 20- 29-2WXH	29	06N	04W	29-06N- 04W	BOTTOM	SE4 SE4 SW4 SW4	Minerals
DOG-	35087223360000	0604 30-	30	06N	04W	30-06N-	SURFACE	NE4 NE4 SE4	Minerals

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STELLA 0604 30-19- 18 3WXH		19-18 3WXH				04W	NW4	
DOG- STELLA 0604 30-19- 18 4WXH	35087223370000	0604 30- 19-18 4WXH	30	06N	04W	30-06N- 04W	NE4 NE4 SE4 NW4	Minerals
DOG- STELLA 0604 30-19- 2WXH	35087223350000	0604 30- 19-2WXH	30	06N	04W	30-06N- 04W	NE4 NE4 SE4 NW4	Minerals
DOG- STELLA 0604 30-19- 2WXH	35087223350000	0604 30- 19-2WXH	30	06N	04W	30-06N- 04W	NE4 NE4 SE4 NW4	Minerals
MEDICINE ARROWS 0804 26-35- 2-2WXH	35087223940000	0804 26- 35-2- 2WXH	02	07N	04W	2-07N- 04W	SE4 SW4 SE4 SW4	Minerals
MEDICINE ARROWS 0804 26-35- 2-3WXH	35087223950000	805 26- 35-2- 3WXH	02	07N	04W	2-07N- 04W	SW4 SW4 SW4 SE4	Minerals
MEDICINE ARROWS 2-35-0704 1WXH	35087221980000	1WXH	02	07N	04W	2-07N- 04W	NE4 SW4 SW4 SW4	Minerals
MEDICINE	35087221980000	1WXH	02	07N	04W	2-07N-	NE4 SW4 SW4	Minerals

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ARROWS 2-35-0704 1WXH	35087221220000	0704 1H- 10X	21	07N	04W	04W	04W	SW4	Not In Inventory List
HILL 0704 1H-10X	35087221220000	0704 1H- 10X	21	07N	04W	04W	21-07N- 04W	SE4 NW4 NE4 NE4	Not In Inventory List
HILL 0704 1H-10X	35087221220000	0704 1H- 10X	21	07N	04W	04W	21-07N- 04W	SE4 NW4 NE4 NE4	Not In Inventory List
CARNE MUERTO 0804 26-23- 2WXH	35087223960000	0804 26- 23-2WXH	23	08N	04W	04W	23-08N- 04W	NE4 NW4 NE4 NW4	Not In Inventory List
CARNE MUERTO 0804 26-23- 2WXH	35087223960000	0804 26- 23-2WXH	26	08N	04W	04W	26-08N- 04W	SE4 NE4 SE4 SW4	Not In Inventory List
MEDICINE ARROWS 0804 26-35- 2-2WXH	35087223940000	0804 26- 35-2- 2WXH	26	08N	04W	04W	26-08N- 04W	SE4 NE4 SE4 SW4	Not In Inventory List
MEDICINE ARROWS 0804 26-35- 2-3WXH	35087223950000	805 26- 35-2- 3WXH	26	08N	04W	04W	26-08N- 04W	SE4 NE4 SE4 SW4	Not In Inventory List

SOVEREIGN BANK / MONTAGE MINERALS LLC

MORTGAGE, SECURITY AGREEMENT, FINANCING STATEMENT AND ASSIGNMENT OF PRODUCTION

Exhibit "A"